

GAHC010061522025



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THE GAUhati HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : I.A.(Civil)/1031/2025

UNITED INDIA INSURANCE CO. LTD.
HAVING ITS REGISTERED OFFICE AND HEAD OFFICE AT 24 WHITES
ROAD, CHENNAI AND ITS REGIONAL OFFICE AT G.S. ROAD, DISPUR,
GUWAHATI.

VERSUS

SMTI RUNUMONI DAS, AND 6 ORS
W/O LATE ARUN DAS, R/O VILL. MATIA PAHAR, P.S. AZARA, DIST.
KAMRUP, ASSAM, PIN 781017

2:HERAMBA DAS
S/O LATE BANGSHI RAM DAS
R/O VILL. MATIA PAHAR
P.S. AZARA
DIST. KAMRUP
ASSAM
PIN 781017

3:SMTI NIRU DAS
WO SRI HERAMBA DAS
R/O VILL. MATIA PAHAR
P.S. AZARA
DIST. KAMRUP
ASSAM
PIN 781017

7:THE NATIONAL INSURANCE CO. LTD.
REGIONAL OFFICE G.S. ROAD
BHANGAGARH
GUWAHATI 5
KAMRUP (M)
ASSAM
(INSURER OF VEHICLE NO AS/01-BL-8659 (M/C))

Advocate for the Petitioner : MR. R GOSWAMI, MS. P BORTHAKUR, MS. M SAIKIA

Advocate for the Respondent : MR S N KRISHNATRAYA (R-3), MR. S ALIM (R-1), MR. M H ANSARI (R-1), MS. U ROY (R-7), MRS. S ROY (R-7)

**BEFORE
HONOURABLE MR. JUSTICE ROBIN PHUKAN
ORDER**

08.08.2025

Heard Mr. R. Goswami, learned counsel for the applicant; Mr. S. Alim, learned counsel for the opposite party No. 1; Mr. S.N. Krishnatraya, learned counsel for the opposite party No. 3; and U. Roy, learned counsel for the opposite party No. 7.

2. Mr. Goswami, learned counsel for the applicant submits that the name of the opposite party No. 2 may be struck off from the array of the appeal.

3. Accordingly, the name of the opposite party No. 2 stands struck off from the array of the appeal at the cost and risk of the applicant.

4. The present interlocutory application, under Section 5 of the Limitation Act read with proviso to Section 173 of the MV Act, is preferred by the applicant, for condoning the delay of 28 days in preferring the connected appeal, against the judgment and award dated 09.09.2024, passed by the learned Member, MACT No. 3, Kamrup (M) at Guwahati, (tribunal hereinafter), in MAC Case No. 2285/2017.

5. Mr. Goswami submits that though the judgment was pronounced on 09.09.2024, yet, the appeal could not be filed in time due to delay in obtaining the certified copy of the judgment and thereafter, in obtaining approval from the

regional office. Mr. Goswami further submits that the delay is not intentional, rather it is circumstantial and therefore, it is contended to allow this application.

6. On the other hand, the learned counsel for the opposite parties submits that they have objection in the event of allowing this application.

7. Taking note of the submissions of learned counsel for both the parties and also considering the explanation so forthcoming in the statements and averments made in the application, this court is of the view that the cause of delay has sufficiently been explained.

8. Accordingly, the delay of 28 days in preferring the connected appeal stands condoned.

9. In terms of above, this interlocutory application stands disposed of.

10. Now, the registry shall register the connected appeal and list the same before the court as soon as practicable.

JUDGE

Comparing Assistant